Zimbabwe

Death Penalty Abolition Act, 2024

Chapter 9:26

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Zimbabwe

Death Penalty Abolition Act, 2024

Chapter 9:26

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ACT

To abolish the death penalty in Zimbabwe; to amend the Criminal Procedure and Evidence Act [Chapter 9:07], section 4 of the Genocide Act [Chapter 9:20], the Criminal Law (Codification and Reform) Act [Chapter 9:23] and section 3 of the Geneva Conventions Act [Chapter 11:06]; and to provide for matters connected with or incidental to the foregoing.

ENACTED by the Parliament and the President of Zimbabwe.

1 Short title

This Act may be cited as the Death Penalty Abolition Act [Chapter 9:26].

2 Abolition of death penalty

Notwithstanding any other law—

(a) no court shall impose sentence of death upon a person for any offence, whenever committed, but instead shall impose whatever other competent sentence is appropriate in the circumstances of the case;

(b) the Supreme Court shall not confirm a sentence of death imposed upon an appellant, whenever that sentence may have been imposed, but instead shall substitute whatever other competent sentence is appropriate in the circumstances of the case;

(c) no sentence of death, whenever imposed, shall be carried out.

3 Amendment of Cap. 9:07

The Criminal Procedure and Evidence Act [Chapter 9:07] is amended—

(a) in section 336 (“Nature of punishments”) in subsection (1) by the repeal of paragraph (a);

(b) by the repeal of sections 337 (“Sentence for murder”), 338 (“Persons upon whom death sentence may not be passed”), 339 (“Sentence of death”), 340 (“Copy of evidence to be transmitted to President”), 341 (“Examination 5 of woman convicted of certain offences”) and 342 (“Manner of carrying out death sentence”);

(c) in section 345 (“Periodical imprisonment”) in subsection (7) by the deletion of “a sentence of death or”;

(d) in section 354 (“Recognizances to keep the peace and be of good behaviour”) in subsection (1) by the deletion of “not punishable with death”;

(e) in section 355 ("Recognizances to appear for judgment”) by the deletion of “not punishable with death”;

(f) by the repeal of section 377 (“President may commute sentence”).

4 Amendment of section 4 of Cap. 9:20

Section 4 ("Genocide") of the Genocide Act [Chapter 9:20] is amended—

(a) by the insertion after "and liable" of "to imprisonment for life";

(b) by the repeal of paragraphs (i) and (ii).

5 Amendment of Cap. 9:23

The Criminal Law (Codification and Reform) Act [Chapter 9:23] is amended—

(a) in section 20 ("Treason") by the deletion from subsection (1) of "death or to";

(b) in section 23 ("Insurgency, banditry, sabotage or terrorism") in subsection (1)—

(i) by the insertion after "liable" of "to imprisonment for life or for any definite period";

(ii) by the repeal of paragraphs A and B;

(c) in section 47 ("Murder") by the repeal of subsection (4) and the substitution of—

"(4) A person convicted of murder shall be liable—

(a) to imprisonment for life or for any definite period of not less than twenty years, if the crime was committed in aggravating circumstances as provided in subsection (2) or (3); or

(b) in any case other than that mentioned in paragraph (a), to imprisonment for life or imprisonment for any definite period of not less than fifteen years or (if there are special circumstances) of not less than five years.".

6 Amendment of section 3 of Cap. 11:06

Section 3 ("Grave breaches of Scheduled Conventions") of the Geneva Conventions Act [Chapter 11:06] is amended in subsection (2) by the deletion from paragraph (a) of "death or to".

7 Amendment of Cap. 11:02

The Defence Act [Chapter 11:02] is amended by the insertion of the following sections after section 114—

"115 Commander-in Chief prerogative

For the avoidance of doubt, it is declared that the President's prerogative power in his or her capacity as the Commander-in-Chief of the Defence Forces is abridged or amended to extent expressly provided by this Act.

116 Suspension of death sentences imposed under this Act

(1) Subject to this section, the death penalty under this Act is suspended with effect from the enactment of the Death Penalty Abolition Act, 2024, and such suspension shall remain in force except for the duration of any state of public emergency declared in terms of section 113 of the Constitution, and, in the event that such a declaration is made, the suspension is automatically lifted with effect from the date when the declaration is made, and shall again come into force automatically upon such declaration

being revoked or ceasing to have effect in terms of section 113(4) of the Constitution.

(2) Every sentence of death that a military court lawfully imposes under this Act—

(a) is automatically commuted to a sentence of imprisonment for life in a civilian prison (subject to a non-release period of twenty years, or such lesser non-release period as the court martial may specify); and

(b) upon the sentence of the military court being confirmed by the confirming authority in terms of section 63, be referred without delay (and without the need to lodge a formal appeal) to the Court Martial Appeal Court for confirmation or, where the Appeal Court so deems it fit in the interests of justice, for resentencing or for disposal in such other manner as the Appeal Court deems to be fit in the interests of justice.

(3) For the avoidance of doubt it is declared that the provisions of this Act bearing on the death penalty shall have full force with effect from the date when any state of public emergency is declared in terms of section 113 of the Constitution, up to the date when such declaration lapses or ceases to have effect in terms of section 113(4) of the Constitution (whether in the interim the declaration has been renewed or not).".

8 Transitional provisions

(1) In this section—

"fixed date" means the date of commencement of this Act;

"prisoner under sentence of death" means a person who, before the fixed date, was sentenced to death for an offence, which sentence has been confirmed by the Supreme Court on appeal.

(2) The Minister of Justice, Legal and Parliamentary Affairs, the Prosecutor General and the Commissioner-General of the Prisons and Correctional Service shall do everything within their respective competences to ensure that, as soon as practicable after the fixed date, every prisoner under sentence of death is brought before the High Court to be sentenced afresh for the offence for which the death sentence was imposed upon him or her.

(3) In proceedings for the sentencing of a prisoner brought before the High Court in terms of subsection (2)—

(a) the prisoner shall be entitled to legal representation, whether at his or her own expense or provided by the State, in all respects as if he or she had been indicted for trial before the High Court on a charge of murder; and

(b) the State shall be entitled to be represented by the Prosecutor-General or any other person entitled to appear for the State in criminal proceedings in the High Court; and

(c) the parties shall be heard, and the proceedings shall be conducted, as nearly as possible as if the presiding judge were sentencing the prisoner at the conclusion of a criminal trial.

(4) The High Court shall impose upon a prisoner brought before it in terms of subsection (2) whatever sentence, other than the death sentence, the court considers appropriate, taking into account all relevant circumstances including—

(a) the nature and circumstances of the offence; and

(b) the personal circumstances of the prisoner; and

(c) the interests of society; and

(d) the length of time the prisoner has been under sentence of death, and the treatment accorded to him or her during that time; and

(e) the likelihood of the prisoner committing further offences.

(5) Notwithstanding any other law, the High Court may direct that a sentence of imprisonment it imposes on a prisoner brought before it in terms of subsection (2) shall run from a date before that sentence was imposed.

(6) A sentence imposed upon a prisoner in terms of subsection (5) shall be subject to appeal in all respects as if the sentence had been imposed by the judge following a criminal trial.

(7) This section shall not be construed as limiting the power of the President to exercise the power of mercy under section 112 of the Constitution in respect of any person who is or was a prisoner under sentence of death.

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